

Justification for Other Than Full and Open Competition (JOTFOC)

R215334309ER09

DESCRIPTION OF THE ACTION BEING TAKEN

This action is for one (1) group requisition for Overboard Discharge Assemblies for the USS Essex LHD 2. The product is manufactured by Rayco Supply. These components are critical OEM components used for fire-fighting and life saving measures onboard the USS Essex LHD 2.

DESCRIPTION OF SUPPLIES REQUIRED

The product being solicited for this Requisition are critical OEM components used for fire-fighting and life saving measures onboard the USS Essex LHD 2.

Acquisition of these various materials will be sourced through Rayco Supply. The estimated cost of this procurement is: \$54,672.00, not inclusive of GSA Recovery Fee.

IDENTIFICATION OF STATUTORY AUTHORITY

This acquisition is conducted under the authority of Section 201 of the Federal Property and Administration Act of 1949 (40 U.S.C. 501). Approval is sought for sole source procurement under the authority of FAR 2.101, 6.302-1 and 13.106-1(b). These plates are commercial products as defined in FAR 12.101.

DEMONSTRATION THAT THE ACQUISITION REQUIRES THE USE OF THE AUTHORITY CITED

FAR 13.106(b)(1)/(2) and 13.501(a) allow the use of other than full and open competition whenever the "Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available" item required by the agency is peculiar to one manufacturer. The use of Ferguson is essential to the Government's requirement, thereby precluding consideration of a product manufactured by another company.

EFFORTS TO SOLICIT TO AS MANY SOURCES AS PRACTICABLE

Rayco Supply is the sole vendor that can provide the supplies required at the level of quality required, as the supplies being requested are unique and highly specialized for their application. Rayco Supply is the original manufacturer of the aforementioned Overboard Discharge Assemblies. This is a specialized product designed specifically for LHD class vessels that were adapted and developed specifically for the Department of Defense. For these reasons, Rayco Supply is the only responsible source for these materials.

DETERMINATION THAT THE ANTICIPATED COST WILL BE FAIR AND REASONABLE

IAW FAR 13.106-3(a) (3) a statement of price reasonableness will be included in the file. Open market items were analyzed using market research, catalog prices, comparison to similar items in a related industry, and factors other than price. The price will be determined fair and reasonable.

DESCRIPTION OF THE MARKET RESEARCH CONDUCTED

Due to these components being part number specific to Rayco Supply, market research indicates that there are no other sources available for these plates.

OTHER FACTS SUPPORTING THE USE OF THE OTHER THAN FULL AND OPEN COMPETITION

While GSA is committed to expanding competition, we must accomplish that goal with the least risk to the successful support of the GSA Mission and the ongoing efforts in the war on terror and homeland security. GSA jeopardizes being able to meet our customers' need by not completing this sole-source, brand name specific procurement.

LIST OF SOURCES THAT EXPRESSED AN INTEREST IN THE ACQUISITION

Rayco Supply is the only manufacturer with the drawings, specifications, material specifications, and tooling required to manufacture these components.

STATEMENTS OF ACTION TO OVERCOME BARRIERS TO COMPETITION

See section "EFFORTS TO SOLICIT TO AS MANY SOURCES AS PRACTICABLE" above.

CONTRACTING OFFICER CERTIFICATION

The contracting officer has determined that the actions taken under this acquisition meet the conditions described in of FAR 2.101, 6.302-1 and 13.106-1(b).and the brand name specified precludes competition to the maximum extent possible. It is in the best interest of the Government to purchase the components from Rayco Supply.

The information contained in the justification for other than full and open competition for the acquisition of the Rayco Supply components is accurate and complete to the best of the Contracting Officer's knowledge.

Prepared and Approved By:

James Dear
Contracting Officer / Approving Official, QSCCB-E6

Date